

Kamlesh Kumar v. State of U.P. — undated electric assessment: speaking order then Section 127

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · WRIT - C No. 42591 of 2019 · **Writ disposed; speaking final order directed; s.127 liberty reserved.**

HEADNOTE

A writ to quash an undated assessment and recovery citation for Rs. 7,53,490 electric dues, alleging want of hearing and non-compliance with the U.P. Electricity Supply Code, 2005, was not decided on merits. The Allahabad High Court directed the consumer to appear before the Executive Engineer with objections and evidence; required a speaking final order within four weeks; stayed coercive action for six weeks or until disposal of the objection, whichever was earlier; reserved liberty to appeal under Section 127 of the Electricity Act, 2003 if aggrieved by that final order; and provided that non-appearance would revive the citation automatically.

FACTUAL SUMMARY

Kamlesh Kumar @ Kamlesh Chandra challenged an undated assessment order and an undated recovery citation issued by the Executive Engineer, Dakshinanchal Vidhut Vitran Nigam Limited, Electricity Distribution Division, Kannauj, to recover Rs. 7,53,490 as electric dues. He alleged that the respondents were taking coercive action without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the Electricity Department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

undated assessment: speaking final order then s.127 appeal

HOLDING

A writ seeking to quash an undated assessment and recovery citation for electric dues, alleging want of hearing and Supply Code non-compliance, is disposed of without examining the quantum: the consumer must appear before the Executive Engineer with objections and evidence; the Engineer shall pass a speaking final order within four weeks; coercive action stays for six weeks or until disposal of the objection, whichever is earlier; if aggrieved by the final order the consumer may appeal under Section 127 of the Electricity Act, 2003; and if the consumer fails to appear and object, the recovery citation stands revived automatically. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final assessment order on the consumer's objections, the Court reserved liberty to appeal under Section 127 of the Electricity Act, 2003 rather than quashing the undated demand on merits. ¶ 1

relegation-to-section-127-appeal-on-merits-limitation-not-examined The Court did not examine the merits or limitation of the Rs. 7,53,490 assessment and recovery citation; those questions were left to the speaking final order and, if needed, a Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE UNDATED ASSESSMENT AND RECOVERY CITATION VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged by the petitioner; the Court did not examine compliance and instead directed a speaking final order after hearing. ¶ 1

NOT DECIDED — MERITS AND QUANTUM OF THE DEMAND OF RS. 7,53,490

Not examined; liberty reserved to appeal under Section 127 after the final order. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.